

Subject: ShutUP Forwarder - response to refund demand

Dear Peter,

I acknowledge receipt of the refund demand dated 10 August 2026 and the technical assessment dated 10 August 2026. I dispute the demand for EUR 2,000 and the allegation that no deliverable was provided. I do not accept liability, and I will not make the requested refund.

This response is based on the written record and is without prejudice to my rights and remedies.

This email is provided solely as a good-faith statement of my position in response to the refund demand and to identify the evidence on which I rely. It is not an admission of liability, breach, contractual scope, completion percentage, debt, refund entitlement, valuation, or acceptance of your characterizations. It is not a settlement offer except for the separate, expressly conditional EUR 700 proposal described below, and it does not waive or limit any claim, defence, or remedy. The references to dates and communications are provided to explain the chronology. If any date, time, or description is inadvertently misstated, that is due to the considerable stress involved in preparing this response and the volume of the material, and I reserve the right to correct it by reference to the original records. Subject to applicable law and any direction of a competent authority, nothing in this email is intended to limit my ability to rely on the complete underlying email, WhatsApp, repository, branch, and test records if this matter escalates.

At the outset, I dispute the evidentiary basis of both `forwarder\_assessment\_report.pdf` and `refund\_demand\_letter.pdf` and do not accept the conclusions or claims made in them. These documents were prepared unilaterally after the work, based principally on the repository, correspondence, and information I provided. Neither document is an agreed requirements document, contract, change request, acceptance record, or independent determination of contractual completion. No contemporaneous, mutually agreed requirements document has been provided to me or identified in the records available to me as the basis for assessing the work. A post hoc report should not be treated as creating new obligations or conclusively establishing a refund claim.

The documents also do not present a consistent account of the alleged failure. In the first project meeting, the work was discussed as a static prototype. The assessment report then confirms that backend code exists, stating that database access, AI calls, and business logic are implemented in SvelteKit server-side route handlers, while criticizing the absence of a separate dedicated backend and alleging that some workflows do not function correctly. That criticism needs to be put in its technical context: SvelteKit is a full-stack framework in which frontend routes and server-side backend logic can be implemented in the same application. It is not technically accurate to equate this with the absence of a backend. The report's reference to a dedicated backend therefore does not mean that backend code was absent or that no backend functionality was delivered. The later refund letter shifts emphasis again, alleging that the core AI features were left unimplemented. These differing descriptions do not identify a single contractual standard or explain precisely which deliverable was allegedly required. They instead assess the work against broader and partly different standards after the fact, including a production-ready system that was not agreed for the EUR 2,000 starter engagement.

1. Scope agreed at the start

The wording quoted in section 2.4 of the assessment report describes the initial EUR 2,000 proposal as a minimal product consisting of a login screen, basic functionality using mock data, input forms, and decisions about the required user types. I do not accept the report's broader interpretation of that proposal or its characterization of the engagement. The quoted wording does not specify a completed AI platform, production SaaS foundation, payment system, GPS tracking, insurance workflow, notification system, computer-vision damage analysis, or a six-week list of technical milestones.

In the same 3 May email, I expressly stated that the scope should be defined, invited Peter to redefine it, and suggested that he review and screen-capture comparable European products if needed. This was a clear opportunity for Peter to provide the business requirements and product direction before further implementation. No completed scope document, product survey, or equivalent requirements specification from Peter appears in the records available to me. The later assessment should therefore not treat its own expanded interpretation as if it had been the original agreed scope.

The email record shows that the project was intentionally being developed as an initial, reviewable prototype while requirements were still being clarified. On 7 May 2026 I stated that Peter needed to provide specifics or I would have to make assumptions. On 3 June 2026 I described the application as based on assumptions and asked Peter to provide clarity and review usability. On 15 June 2026 I described it as a skeleton application with business logic and screens, stated that AI calls were intentionally blank for later image verification and matching work, and stated that the bidding system had basic working logic. On 23 June 2026 I explained that my goal was to understand the requirements and deliver a first prototype for review. These communications support a staged prototype process, not a completed production AI platform for EUR 2,000.

The April correspondence also needs to be read as a whole. At 4:21 PM on 22 April 2026, I estimated a live POC at approximately EUR 10,000, including salaries, server costs, and office expenses. At 7:11 PM the same day, I explained that a POC meant an end-to-end prototype with functionality and that the AI agents and image-matching algorithm would be improved later as real client data became available. The assessment report's correspondence log refers to the April 18 mockup and the May 3 EUR 2,000 proposal, but does not refer to either of these two 22 April clarifications. The two messages together distinguish the broader, separately funded AI POC from the initial EUR 2,000 starter work and show that further AI refinement was expected as a later stage. The report should not rely on the 4:21 PM budget reference while leaving out the explanatory 7:11 PM clarification.

Peter's email of 20 June 2026 (Gmail, subject "Hi praveen") contained feedback and questions about user roles, business logic, security, listings, backend work, bidding, driver notification, technical documentation, AI integration, hours, and resources. I do not disregard that feedback, but it was not a mutually agreed BRD, a signed change request, a final acceptance specification, or a defined list of deliverable milestones. My reply on 21 June 2026 explained that the initial phase had limited requirements, that the backend business logic was implemented, that image upload and AI validation were intentionally mockups, and that the next step was a live demo and requirements review. Peter's email of 23 June 2026 also referred to business content that was not already clear and asked me to discuss technical details with Skander. The written record therefore shows an evolving discovery and clarification process rather than a stable, complete requirements document.

The Git history also shows that substantial implementation work existed before Peter's 20 June feedback. In the earlier Forwarder/Fahad repository lineage, the summary records authentication, role routing, job lifecycle, and the Euro marketplace in commit `3581ba9` dated 18 May 2026; the bidding feature in commit `e75e2d7` dated 19 May 2026; Prisma and database-related work in commits `2fd93de` and `daf2d69` dated 19 May 2026; deployment and backend configuration in commits `10baad8` and `9a4daa8` dated 19 May 2026; and security/CORS changes in commits `3ad41c0` and `93b6022` dated 20 May 2026. Further dashboard, tracking, driver-approval, and role-based-access work was recorded before 20 June, including commits `fd92476` on 10 June, `3e355e0` on 23 June, and subsequent June commits. This history does not mean every later feature was already complete on 20 June, but it does contradict the suggestion that the work consisted only of an empty UI with no meaningful implementation. The records show an active, evolving codebase to which Peter was asked to provide requirements and usability feedback.

Section 2.4 of the assessment report labels four categories as "Agreed": (1) a six-week engagement with allocated resources; (2) a working technical foundation for the platform; (3) basic functionality with mock data, including login, forms, and user types; and (4) development resources to be presented and coordinated with the client. The report places a corresponding "Delivered" description beside each category. I do not accept those labels as proof that the categories, their extent, or their delivery conditions were mutually agreed. In particular, I never agreed to act as a staffing company, supply personnel for hire, or make my developers available for the client's separate management and selection process. I dispute the negative conclusions in the "Delivered" column. The table does not identify an agreed requirement for a completed AI platform or a production-ready system, and it does not make the assessor's conclusions contractually binding.

The first three categories must be understood in the context of the starter proposal and the contemporaneous emails: basic login, forms, user types, mock-data functionality, business-logic development, and a reviewable prototype. The report's later references to dedicated services, production infrastructure, auditability, advanced automation, and other SaaS requirements expand that standard after the fact. The fourth category was never agreed in the form asserted by the report. Developer interviews, hiring, dedicated staffing, and direct client management would require separate commercial terms and a budget appropriate for the resources involved; they were not included in the EUR 2,000 starter payment.

Section 2.4 also illustrates how the assessment assembles its argument from selected statements rather than presenting the full communication context. It quotes the 3 May EUR 2,000 proposal and then interprets the phrase "minimal product" as a commitment to a broader platform foundation. It cites selected statements about architecture, foundation, and a workable POC, but does not set out the complete April 22 explanation that the broader live POC was estimated at approximately EUR 10,000 and that AI-agent and image-matching improvements would occur later. It also does not include my 21 June clarification that the initial phase had limited requirements and that image upload and AI validation were intentionally mockups pending workflow alignment. This selective presentation changes the apparent meaning of the original starter proposal and supports a broader standard than the contemporaneous record establishes.

If my email messages are relied on as evidence, they should be considered in their complete context rather than selectively quoted to support an argument based on isolated statements. My messages consistently explained that the product was being developed in stages, that requirements still needed to be defined, and that particular AI and image-related work was deferred until the next properly funded phase. Building an argument from selected messages while omitting the surrounding explanations risks distorting their meaning and inferring an intent or obligation that the full correspondence does not establish. The appropriate step would have been to invest the necessary effort in preparing and agreeing a requirements document, rather than treating an evolving discussion as a fixed specification.

During the first meeting, instead of providing a requirements document, Skander raised the following points orally as criticisms:

- ****Vercel:**** Skander said that Vercel should not be used because it is an Israeli company. In my view, demanding that a technology be rejected solely because of the country associated with its company is unprofessional and is not a reasoned technical objection. Nevertheless, I responded constructively by migrating the project from Vercel to Railway while retaining the SvelteKit architecture.
- ****Four database tables:**** Skander criticized the fact that the database contained four tables. This was my implementation decision for the prototype. The use of Clerk for authentication reduced the need for separate authentication and role tables, and the EUR 2,000 prototype did not require a large production schema. No database-design specification requiring a larger schema was supplied. This criticism is therefore not evidence that the agreed prototype was undelivered.
- ****Multilingual support:**** Skander raised multilingual support as a criticism. I had provided German and English support for the landing page, but full multilingual support throughout the product was not expressed by Peter in writing or agreed as part of the EUR 2,000 starter scope.

I was willing to discuss and address reasonable technical or product requirements once they were clearly defined and agreed. I acted on the deployment point that was actually discussed by migrating from Vercel to Railway while retaining the SvelteKit architecture, even though I considered the original objection superficial and unprofessional. These three oral points were not themselves stated as the grounds for the later refund demand. Instead, the later assessment report omits them and relies on a different set of criticisms drawn from the repository and other materials I supplied. In my view, the omission is significant: the points raised in the meeting were too superficial and unprofessional to serve as a credible technical assessment, so they were not tracked in the later report.

The later communications also focused increasingly on presenting and interviewing developers and on arranging someone to manage the full-stack work. Supplying personnel for interview, hire, or direct client management is not the same as delivering the agreed prototype and is not a staffing service I agreed to provide. Dedicated developer allocation would require separate commercial terms and a budget appropriate for the resources involved; it could not reasonably be expected within the EUR 2,000 starter payment. There was no agreed deployment specification for the original starter work. On 8 July, Skander said that the direction had become clearer after speaking with Peter and raised the possibility of a Spring Boot environment to support eFT, EDIFACT, and eCMR frameworks. The conversation also considered whether the existing SvelteKit application could connect through APIs or whether migration to NestJS/TypeScript should be explored. I responded that I would study the initiative and consult Spring Boot contacts. This was a client-driven exploration of a possible future direction, not an agreed deployment requirement or an admission that the SvelteKit prototype was deficient.

In my view, the later assessment does not address the superficial points raised in the meeting and instead selectively relies on items that were either not implemented because they were expressly reserved for a later stage, or were not agreed requirements at all. This creates the impression that incomplete or future-scope items were selected from the material provided to support a refund demand. The AI damage-analysis, photo-processing, and related advanced features were intentionally left pending for the later AI-based POC. The broader POC was discussed at approximately EUR 10,000, with the EUR 2,000 starter stage being only the initial portion and the remaining work expected to be separately funded as the requirements evolved. Treating those deliberately deferred items as proof that the starter prototype was undelivered is not a fair assessment of the agreed work.

2. Work delivered

The delivered repository is not merely a static screen-only mockup. It contains basic, prototype-level implementations, among other things:

- Clerk authentication and role-based access for customers, forwarders, and administrators;
- PostgreSQL persistence through Prisma for users, jobs, bids, and driver applications;
- Customer vehicle-intake and job-submission flows;
- server-side validation and authorization;
- Rudimentary AI-assisted intake evaluation and target-price estimation;
- A rudimentary forwarder marketplace with basic bid submission, bid evaluation, counter-offer, and approval workflows;
- trip, status, tracking, cancellation, and completion flows;
- driver onboarding and administrator approval screens; and
- deployment configuration, seeded data, and API/integration tests.

These prototype-level features are summarized in the attached `features\_implemented.pdf` and are supported by the source code. The attached document also clearly identifies unfinished or crude placeholder implementations, including real photo uploads, GPS tracking, payments, notifications, insurance, and production hardening. The basic bidding workflow should not be confused with production-ready transport-marketplace logic: actual business rules, dispatch, notifications, integrations, and deployment would require further requirements discussion, implementation, testing, and funding. These limitations are consistent with a basic prototype and do not establish that nothing was delivered.

The report's reference to 30 commits is also incomplete and misleading when used to characterize the entire development work. Its 30-commit figure refers to the limited 1-11 July history visible in the repository snapshot that was provided for review. The consolidated Git summary records 71 unique commits across multiple repository histories, with activity from April through August. The histories also record work by multiple contributors and include feature, architecture, authentication, bidding, database, deployment, tracking, authorization, and testing changes.

The final repository and the attached `features\_implemented.pdf` summary describe the work visible in the final consolidated version. They do not include every branch and repository used by the three developers during development. The underlying records show a sequence of implementation work, fixes, configuration changes, and testing over several months, not an isolated short burst with no functional development. I am prepared to provide the relevant branch histories, commit records, test records, and source material so that the work can be reviewed in full rather than assessed only from the final snapshot.

I provided repository access, source code, and its visible Git history as an act of cooperation and without any belief that the material would be used selectively to construct a claim against me. The repository made available for review was the final consolidated repository, not a complete archive of every repository, branch, or working history used by all three developers. The additional repositories and histories can be produced if required. In my view, relying only on the accessible final history while omitting those other records creates a materially incomplete picture and may give the appearance of a one-sided presentation. I reserve the right to produce the complete records and explain why any selective use of the visible history is misleading.

Today, 27 August 2026, I removed Skander's access from the GitHub repository at `https://github.com/ForwarderDE/Fullstack` as an access-control measure. I have not deleted or altered the relevant repositories, branches, messages, commits, or records, and I will preserve them. I dispute the use of the limited repository history available to him as a basis for constructing a claim against me, particularly where the assessment does not account for the other branches, repositories, merged work, and later changes. If I am required to answer or defend any lawsuit, I am prepared to produce the complete relevant Git history and supporting records so that the development activity can be assessed in its proper context.

3. AI features and the evolving project direction

The initial EUR 2,000 work was described as a basic starting product so that requirements could be clarified and the project could be demonstrated. The full AI-based logistics POC was discussed as a substantially larger project, with an approximate budget of EUR 10,000. I did not represent that the initial EUR 2,000 starter work included every AI feature in the later product vision.

The assessment and refund letter now treat the absence of AI damage detection, photo processing, and other advanced automation as a breach. Those features were not defined as a complete, agreed delivery scope for the starter engagement. The written record distinguishes between the EUR 2,000 basic starter work and a later AI-based POC discussed at approximately EUR 10,000 as the project evolved. The AI-based POC was therefore a separate, larger stage of work, not a basis for declaring the EUR 2,000 starter work undelivered. I also explained that photo-upload and related AI work would be addressed in the AI phase rather than added prematurely to the initial prototype.

The same distinction matters to the standard now being applied. A basic EUR 2,000 prototype was being developed to clarify requirements and support the next stage. Skander's assessment instead applies the standard of a production-ready logistics system, including dedicated backend services, production infrastructure, auditability, operational integrations, and advanced automation. That may describe a future product objective, but it was not the agreed deliverable for the initial payment. The absence of that future production system cannot establish a breach of the basic starter engagement.

The technical assessment also criticizes technology choices, including Vercel, the number of database models, and the absence of a separately deployed backend service. These are engineering preferences or production-readiness observations, not proof that the agreed prototype was not delivered. SvelteKit's server-side route handlers are the backend layer of the selected full-stack architecture; a different architecture using NestJS or Spring Boot would separate that layer into another service, but such a separation was not specified in the starter scope. These criticisms were not supported by a requirements document or an agreed architecture specification supplied by you.

4. Change in control and termination

The original arrangement was directly between Peter and me: Peter would lead the business side and I would lead the technical implementation. The written correspondence later changed that position. Skander's role as the person leading the project and exercising technical authority was new information to me; it was not part of the arrangement under which I began the work. On 5 August 2026 Peter wrote that "Skander has 100% decision-making power" and that Skander might end the work relationship (email from Peter dated 5 August 2026). On 12 August 2026 Peter wrote that Skander was CTO and that I had to work with him or end the relationship. On 17 August 2026 I explained that this was materially different from our original arrangement and that the original technical role no longer existed in that form.

The WhatsApp record confirms that the project was ended after I proposed arranging an experienced person to coordinate the full-stack work. On 4 August 2026 I explained that I was handing the project to another experienced person for coordination. Skander then required interviews with developers and, on 5 August 2026, stated that the project would be considered breached if I could not provide a developer for interview by Friday (WhatsApp, 5 August 2026, 23:41). On 10 August 2026 at 21:19, he then formally stated that the project could not continue and demanded a full refund. In my view, the very short deadline and subsequent termination did not provide a reasonable opportunity to clarify the requirements or continue the project, particularly because the BRD was still conditional on developer vetting, infrastructure setup, and an NDA. I considered this process unfair and unprofessional.

It is therefore inaccurate to present the situation as a simple failure to deliver the original scope. The technical direction, decision-making structure, and continuation conditions changed after work and resources had been committed. The sequence of the new leadership arrangement, the developer-interview condition, and the refund demand also gives me serious concern that Peter and Skander coordinated a case against me using changing descriptions of the project. I do not state that concern as an established fact, but I reserve the right to rely on the complete correspondence and repository history to examine how the claim was assembled. If you later change your assessment of the project, it would be unfair to attribute the entire outcome to another person who did not complete a later, newly defined phase and then use that attribution to pursue a full refund or increase the amount claimed. A decision to continue under Skander's technical authority, or to replace the existing stack and redevelop the product, would have been a new engagement requiring clear written terms.

5. The 30% statement and the conditional compromise

In the first meeting with Skander, I gave a tentative estimate of approximately 30% in the context of an evolving project discussion. It was not an acceptance of a contractual completion formula, a valuation of the delivered work, or an agreed basis for calculating a refund. It was made before subsequent code changes and feature work were completed, and before the project was unilaterally ended.

The Git history provides evidence that development continued after that meeting. It records subsequent feature additions, code changes, and testing performed by me and my developers, including work continuing through August 2026. I can provide the relevant commit history, repository records, and test evidence. Peter cannot reasonably treat an interim estimate made at the first meeting as a final measurement while disregarding the work completed and tested afterwards.

Neither Peter nor Skander has a contractual right to convert that provisional statement into a unilateral refund calculation. Completion must be assessed against the scope actually agreed, not against an expanded scope later set out in the assessment report. Peter's email of 19 August 2026 relies on the tentative 30% statement while also disputing the scope itself; that does not establish a debt of EUR 1,400.

My email of 17 August 2026 offered EUR 700 solely as a compromise to resolve the matter amicably and avoid further dispute. That offer was expressly conditional on a written agreement recording my position that: (1) the requirements and technical direction had changed after work began; (2) technical leadership had been transferred to Skander, replacing the original arrangement; and (3) EUR 700 would be accepted as a full and final settlement with no further refund, payment, or related claim by either party. These were settlement terms, not admissions of fact, liability, breach, or refund entitlement. As a separate procedural condition, I also made clear that payment would not be made to Skander's account and that any payment method would need to be mutually agreed and verifiable.

The EUR 700 proposal was not an admission that a refund was owed, that only EUR 700 of the EUR 2,000 payment was justified, or that Peter's 30% calculation was correct. I was prepared to retain EUR 1,300 for the work, time, resource commitments, and costs already incurred, and to return EUR 700 solely as a discretionary compromise reflecting my position regarding the changed project direction. Therefore, the only refund amount ever proposed by me was EUR 700, subject to the stated settlement terms and the separate payment-method condition.

Peter did not accept those conditions. Instead, his email of 19 August 2026 rejected the basis of the proposal, disputed the agreed scope, demanded at least EUR 1,400, and continued to rely on the disputed 30% statement. His email of 23 August 2026 again asked to discuss a refund but did not accept the required full-and-final settlement terms. The offer was conditional because the matter had been handled in a way that seriously undermined my trust, and because I required a complete and final resolution rather than continued argument about the merits. As the conditions were not accepted and the client continues to dispute the underlying position, I expressly withdraw the EUR 700 compromise offer. It was never an admission of liability or an agreed refund amount.

6. Refund demand and assignment

The refund letter dated 10 August 2026 demands payment to Skander's personal account and states that Peter assigned the claim to him. I have not received a separate executed assignment document or evidence sufficient for me to verify the alleged assignment, its scope, or the authority to receive payment. Please provide any such document if you intend to rely on it.

For clarity, my original commercial dealings and payment relationship were with Peter. I had no separate contract, purchase order, or payment relationship with Benstack, and I never received payment from Benstack. Skander and Benstack became involved later in the technical discussions and then presented themselves as having authority over the project and over the refund claim. I was not informed at the outset that Benstack would replace my role, direct my developers, or issue a demand in its own name.

I understand that Peter may have sought technical assistance from Skander and Benstack. However, the sequence of events gave me the reasonable impression that a new technical structure was being introduced to replace the original arrangement and that I was being pressured to leave the project through short deadlines and legal language. I do not make any allegation about anyone's subjective intention; I state only that the effect of these actions was to marginalize my role, transfer control of the project, and support a demand from a company with which I had no contractual or payment relationship. This is one reason I no longer have confidence in continuing discussions outside a formal written process.

More importantly, the demand remains disputed on its merits. The assessment report is a unilateral post hoc technical opinion. Its ratings and recommendations do not establish a breach, the agreed scope, or the amount of any loss. The threat of German debt-collection proceedings does not change that position.

7. Final position

Because the conditional compromise was not accepted, and because the project was terminated after the requirements, technical direction, and decision-making structure changed, I will make no refund. The EUR 700 offer has been withdrawn and cannot be treated as an admission that any refund is owed. I have sufficient documentary, repository, email, and WhatsApp evidence to set out and defend my position if necessary. I have incurred business losses and resource-allocation costs in developing the prototype and committing resources to the project. I also no longer have sufficient trust to make any payment while the matter is accompanied by threats of legal action, an unverified assignment, and demands based on requirements that were never agreed in writing.

I therefore reject the demand for a full refund and will not pay EUR 2,000, EUR 1,400, EUR 700, or any other amount based on the claims in the assessment and refund letter. This is my final position unless a court or other competent authority determines otherwise. Please preserve all project repositories, branches, messages, emails, documents, and deployment records relevant to this dispute.

All further communication about this dispute should be in writing. If I am required to answer or defend any lawsuit, I am prepared to present and substantiate my case using the complete underlying email, WhatsApp, repository, branch, commit, and test records. Nothing in this letter waives any claim or defence, including claims arising from the unilateral termination, the change in technical control, the use and characterization of my work, or business and resource losses caused by the changed direction and termination.

Regards,

Praveen Kulkarni